

1. Definitions

- 1.1 In these General Terms and Conditions of Sale and Delivery (hereinafter: "Terms and Conditions") and in any Agreement to which these Terms and Conditions apply, the following shall mean:
- 1.2 Kuiper Holland: the Contractor being the private limited company Kuiper Holland B.V., having its registered office in Tubbergen, also trading under the names "Dutch Marine Panels" and "Kuiper Holland", hereinafter referred to as "Kuiper Holland";
- 1.3 Client: the counterparty of Kuiper Holland who has given Kuiper Holland an assignment, or enters into discussions with Kuiper Holland about giving an assignment for the delivery of goods;
- 1.4 Parties: Kuiper Holland and Client jointly.

2. Applicability

- 2.1 These Terms and Conditions apply to and form an integral part of all agreements—including the acts and statements aimed at bringing about those agreements—between Kuiper Holland and Client for the manufacture and/or supply of goods and/or the provision of services and/or the creation of a work of a tangible nature by Kuiper Holland. These Terms and Conditions also apply to supplementary or subsequent agreements.
- 2.2 These Terms and Conditions apply exclusively in the sense that provisions and/or general (purchase) conditions from the Client's side do not apply, unless and insofar as expressly and specifically accepted in writing by Kuiper Holland.
- 2.3 If one or more articles of these Terms and Conditions are deviated from in writing, that deviating provision or condition shall apply only to the specific case in view of which the deviation was agreed.

3. Offers

- 3.1 Unless expressly stated otherwise, all offers by Kuiper Holland, in whatever form made, are entirely without obligation and are only to be regarded as an invitation to place an order by the Client, unless expressly stated otherwise.
- 3.2 Kuiper Holland is always entitled to revoke the offer it has made, up to 10 working days after acceptance thereof.
- 3.3 An offer is valid only for a specific order and does not apply to subsequent orders.
- 3.4 Offers include only those goods expressly stated therein.
- 3.5 Kuiper Holland may rely on the accuracy of the information, drawings, data, etc. provided to it by the Client, and may base its offer on such information originating from the Client. Any estimates, plans or other documents accompanying an offer remain the property of Kuiper Holland and must be returned to Kuiper Holland carriage paid upon first request. Without Kuiper Holland's permission, they may neither

be reproduced nor made available for inspection by third parties.

- 3.6 Any samples, models, images, drawings and dimensions accompanying Kuiper Holland's offers provide a general representation of the goods offered. Changes in the construction, as a result of which the actual execution deviates somewhat from the intended samples, models, images, drawings or dimensions, but which do not bring about any essential change in the technical and aesthetic execution of the goods, do not oblige Kuiper Holland to provide any compensation for this, nor does this give the Client the right to refuse receipt or payment of the delivered goods. Samples and swatches are non-binding visual samples. In a sale by sample and/or swatch, deviations customary in the trade or falling within the scope of normal production are reserved.
- 3.7 The goods are offered on the basic principle that the Client has taken all reasonable measures to satisfy itself that the goods and/or surface treatment are suitable for its specific products, applications and production methods. From the moment of delivery of the goods to the Client, their use is solely at the Client's own risk and responsibility. All direct or indirect consequences of whatever nature are for the Client. After delivery of the goods, Kuiper Holland provides no warranty whatsoever for incorrect use by the Client.

4. Formation and cancellation of the agreement

- 4.1 Agreements with Kuiper Holland, as well as amendments and supplements thereto, are concluded only after written (digital is also considered written) confirmation by Kuiper Holland, or by Kuiper Holland actually performing the agreement.
- 4.2 If, after an agreement has been concluded, the Client wishes to cancel it in whole or in part, or if the agreed delivery date is exceeded by 10 working days due to acts or omissions of the Client, or of persons for whom the Client is liable in the relationship with Kuiper Holland, 20% of the order price (including VAT) will be charged as a cancellation fee, without prejudice to Kuiper Holland's right to claim full compensation for damages from the Client.
- 4.3 Kuiper Holland is entitled to have an assignment given by the Client performed in whole or in part by third parties, without prejudice to its responsibility towards the Client for the fulfillment of the assignment.

5. Delivery

- 5.1 If Kuiper Holland is, for the performance of the agreement, partly dependent on the cooperation of the Client, and the Client fails to provide such cooperation for any reason whatsoever, the term for performance shall be extended by such period as Kuiper Holland reasonably requires to undo the delay caused by the Client's failure. The same shall apply if delays in performance arise as a result of requests

from or on behalf of the Client for modification, adjustment, or supplementation of what has been agreed. Furthermore, any additional costs incurred by Kuiper Holland in connection with a delay as referred to above shall be borne by the Client.

- 5.2 The delivery period shall be determined by Kuiper Holland to the best of its ability and in good faith, but shall not constitute a strict or fatal deadline, unless otherwise agreed between the Parties. Exceeding the delivery period, regardless of the cause, shall under no circumstances entitle the Client to any compensation, termination of the agreement, cancellation of the order, or to withhold or fail to perform any obligation arising for the Client from the agreement concluded with Kuiper Holland.
- 5.3 Delivery shall take place “DDP” (INCOTERMS 2010) at the agreed place of delivery.
- 5.4 Unless otherwise agreed, Kuiper Holland shall be responsible for loading the goods “Ex Works Kuiper Holland” (EXW, INCOTERMS 2010).
- 5.5 The Client shall be responsible for unloading the goods at the address designated by the Client. The Client shall bear all risks relating to damage to goods and/or persons caused during the unloading process.
- 5.6 If the Client designates a delivery address outside the Netherlands as the place of destination, Kuiper Holland shall obtain any export licence or other official authorization and, where applicable, fulfil all customs formalities required for the export of the goods. The Client shall obtain any import licence or other official authorization and, where applicable, fulfil all customs formalities required for the import of the goods and their transit through any country.
- 5.7 The Client shall be obliged to accept the goods and services, the delivery of which has been agreed by Kuiper Holland, at the time and place applicable between the Parties pursuant to the relevant agreement and/or these Terms and Conditions. Kuiper Holland shall be entitled to make partial deliveries.

6. Risico- en eigendomsovergang

- 6.1 The risk in the goods to be delivered by Kuiper Holland shall pass to the Client at the moment such goods are delivered to the Client in accordance with the contents of the agreement, whether or not by way of making them available. If, at the time of delivery applicable between the Parties, the Client fails to take delivery for reasons not attributable to Kuiper Holland, the risk shall pass permanently to the Client at that time. The risk and all costs relating to storage and transport which Kuiper Holland must incur in respect of the goods from the time of delivery referred to in the

preceding sentence shall be entirely for the account and at the risk of the Client.

- 7. Ownership of the goods delivered in accordance with the preceding paragraph of this Article shall pass to the Client at the moment the goods are delivered to the Client, whether or not by way of making them available, however under the suspensive condition that the Client has fulfilled all of its financial obligations towards Kuiper Holland arising from any legal relationship whatsoever with Kuiper Holland.

8. Price

- 8.1 A price quoted or agreed shall, unless expressly stated otherwise, not include value added tax (VAT) or any other (governmental) levy payable in connection with the agreement and, in the event that Kuiper Holland is responsible for the transport of goods, shall likewise not include costs relating to unloading, demurrage, detention, waiting time (after the standard free time), additional storage, or (customs) formalities outside the agreed Incoterm. Kuiper Holland shall be entitled to charge the aforementioned items separately and in full to the Client.
- 8.2 If Kuiper Holland and the Client have agreed upon a price in a currency other than Euro, and such other currency depreciates in value against the Euro after the time of Kuiper Holland’s latest (price) offer, Kuiper Holland shall be entitled to adjust the price insofar as necessary to compensate for the depreciation that has occurred up to the time of full payment.
- 9. If, after the date on which the agreement has been concluded and prior to delivery, one or more of the cost price factors (such as prices of materials, auxiliary materials and raw materials, wages, social charges, other government-imposed costs, levies and taxes, transport costs, import and export duties, or insurance premiums, etc.) increase — even if such occurs as a result of foreseeable circumstances — Kuiper Holland shall be entitled to increase the agreed price accordingly.

10. Payment

- 10.1 Net payment shall be due within thirty (30) days after the date of the invoice, unless otherwise agreed in writing between Kuiper Holland and the Client, but in any case no later than the last day prior to the delivery date of the goods, into the bank account designated by Kuiper Holland. Kuiper Holland shall be entitled to issue invoices also for partial deliveries.
- 10.2 If the Client fails to make payment within the agreed term, the Client shall be deemed to be in default by

operation of law, and Kuiper Holland shall, without any notice of default being required, be entitled to charge the Client statutory commercial interest within the meaning of Article 6:119a of the Dutch Civil Code from the due date onwards, as well as all actual judicial collection costs incurred in the event Kuiper Holland has assigned the claim for collection to a third party.

10.3 Unless Kuiper Holland has expressly agreed in writing to a deferment of payment, the Client shall not be entitled to suspend payment of the price. If payment is not made on time, Kuiper Holland shall, without prejudice to its other rights arising from law or contract and without any notice of default being required, be entitled to:

- a. suspend performance of the agreement in respect of which the Client is in default of payment, as well as any other agreements with the Client;
- b. claim compensation for any damages caused as a result of the late payment; and
- c. declare all other invoices, including those not yet due, immediately payable.

10.4 If Kuiper Holland has reason to doubt the Client's compliance with its payment obligations — whereby the following circumstances on the part of the Client shall in any case be deemed sufficient grounds for such doubt: repeated default in payment, attachment levied against the Client, (application for provisional) suspension of payments, (application for) bankruptcy, total or partial cessation or transfer of the business, including the contribution of the business to a company to be incorporated or already existing — then all amounts owed by the Client to Kuiper Holland shall become immediately due and payable, and Kuiper Holland shall be entitled to suspend performance of its obligations until full payment or, to Kuiper Holland's satisfaction, adequate security for payment has been received. If full payment or sufficient security is not provided within fourteen (14) calendar days after such request, Kuiper Holland shall be entitled to terminate the relevant agreement, in whole or in part, without judicial intervention, without prejudice to its right to compensation for any damages suffered and/or yet to be suffered.

11. Inspection of the Goods Delivered

11.1 After delivery of the goods, the Client shall immediately verify the goods for completeness and soundness (quantity, dimensions, visible defects, etc.). Any complaints regarding the goods delivered must be reported by the Client to Kuiper Holland by registered mail within forty-eight (48) hours after delivery and in any event before the goods are used or processed, with a clear description of the issue identified, failing which the Client shall be deemed to have

unconditionally accepted the goods delivered. In the case of visible defects, the Client must notify Kuiper Holland of such defects immediately upon delivery, failing which the Client shall likewise be deemed to have unconditionally accepted the goods delivered.

11.2 Shortages or defects identified during the inspection referred to in paragraph 1 of this Article and reported to Kuiper Holland in due time and in writing, as well as shortages or defects which could not have been discovered during the inspection referred to in paragraph 1 but which become apparent within the warranty period and are reported to Kuiper Holland in writing within fourteen (14) days after discovery, shall, insofar as possible, be remedied by Kuiper Holland by means of supplementation or—at its discretion—repair or replacement.

11.3 With respect to the remedying of shortcomings and defects, the following provisions shall apply:

- a. Kuiper Holland shall make every reasonable effort to carry out or have carried out the remedying as soon as reasonably possible under the given circumstances. The Client shall provide all cooperation required for this purpose.
- b. The remedying shall take place as much as possible at a location to be designated by Kuiper Holland. The goods shall travel to and from that location at the Client's account and risk.
- c. In the event of remedying outside the Netherlands, the travel and accommodation expenses of those performing the investigation and the remedying shall also be borne by the Client.
- d. If shortcomings or defects occur in respect of goods that Kuiper Holland has obtained from third parties, or in respect of work that Kuiper Holland has caused to be performed by third parties, the remedying thereof shall be carried out free of charge only insofar as the third party concerned assumes the costs of such remedying.
- e. The Client's right vis-à-vis Kuiper Holland to have shortcomings or defects remedied shall lapse if the Client carries out or has a third party carry out the remedying without Kuiper Holland's prior written consent.
- f. The occurrence of shortcomings or defects shall not constitute grounds for suspension of the Client's payment obligations towards Kuiper Holland. If the Client, even after a written reminder to do so, fails to meet its payment obligations, this shall entail forfeiture of its right to rectification of shortages and defects.
- g. Furthermore, Kuiper Holland reserves the right to conduct (or have conducted) an investigation

into the complaint, and the Client shall be obliged to provide all cooperation reasonably requested by Kuiper Holland for such investigation. This includes, inter alia, granting Kuiper Holland the opportunity to carry out (or have carried out) an on-site investigation into the conditions of processing, handling, installation, and/or use.

11.4 Kuiper Holland's products may contain natural materials and are sold with their inherent natural characteristics. Minor variations in, among other things, colour, pattern, or structure are always possible. Such minor deviations within customary tolerances shall not entitle the Client to lodge complaints, to claim damages, or to request cancellation of the order.

11.5 Any return shipment of goods supplied by Kuiper Holland shall take place only after mutual consultation and must first be approved in writing by Kuiper Holland. In the absence of such approval, all return shipments will be refused, and all costs thereby incurred shall be charged to the Client.

11.6 Kuiper Holland cannot be held liable for any loss of time and/or production that may arise as a result of any of the aforementioned complaints.

12. Retention of Title

12.1 The goods delivered by Kuiper Holland shall remain the property of Kuiper Holland until the Client has fulfilled all of its obligations arising from all agreements concluded with Kuiper Holland.

12.2 The Client may use goods that are subject to retention of title only within the scope of its ordinary course of business. Except as provided in this Article 12.2, the Client may not dispose of, lease, or encumber such goods with any security interests or other limited rights in rem. The Client shall ensure that the goods remain identifiable as goods obtained from Kuiper Holland. The Client shall at all times grant Kuiper Holland (or its representative) free access to the location where the goods are stored. If the Client fails to meet its payment obligations towards Kuiper Holland, or if there is reason to assume that it will fail to meet its payment obligations in whole or in part, the Client shall, at Kuiper Holland's request and at its own expense, return to Kuiper Holland all goods of which ownership has not yet passed, and the Client undertakes to render all cooperation necessary to enable Kuiper Holland (or its representative) to retrieve its goods.

12.3 If the Client fails to comply with any payment obligation, Kuiper Holland shall be entitled to remove

or have removed from the Client (or from third parties) any goods still subject to retention of title. The Client shall be obliged to render full cooperation thereto, subject to a penalty payable on demand of fifteen percent (15%) of the amount due (invoice amount) per day or part thereof. Kuiper Holland shall not be obliged to compensate the Client for any damage suffered in connection with the repossession of the goods. All costs relating to the repossession and any subsequent realization of the repossessed goods shall be borne entirely by the Client. Any amount still owed by the Client to Kuiper Holland shall be reduced by the value that the repossessed goods have for Kuiper Holland in the ordinary course of trade. Kuiper Holland shall in this respect never be required to apply a value higher than the price agreed with the Client for those goods.

12.4 At Kuiper Holland's first request, the Client undertakes to insure and keep insured the goods delivered under retention of title against fire, explosion, and water damage, as well as against theft, and to provide Kuiper Holland with inspection of the insurance policy.

Furthermore, the Client shall be obliged to:

- a. pledge to Kuiper Holland, in accordance with Article 3:239 of the Dutch Civil Code, all claims of the Client against insurers with respect to the goods delivered under retention of title;
- b. pledge to Kuiper Holland, in accordance with Article 3:239 of the Dutch Civil Code, all claims that the Client acquires against its own customers arising from the resale of the goods delivered under retention of title;
- c. immediately provide Kuiper Holland with the names and addresses of all third parties to whom it has resold goods delivered by Kuiper Holland under retention of title, as well as all rights it has obtained from such resale against those third parties;
- d. designate the goods delivered under retention of title as the property of Kuiper Holland; and
- e. cooperate with all reasonable measures that Kuiper Holland wishes to take to protect its retention of title in relation to the goods delivered, provided that such measures do not unreasonably hinder the Client in the normal conduct of its business.

13. Right of Retention

13.1 Kuiper Holland shall have a right of retention over all goods of the Client that are in Kuiper Holland's possession, regardless of the cause, for as long as the Client has not fulfilled all of its obligations towards Kuiper Holland, on any ground whatsoever.

13.2 Kuiper Holland shall be obliged to handle and store the goods concerned in accordance with sound commercial practice, without the Client being entitled to any compensation in the event of loss, partial loss, or other damage.

14. Garantie

14.1 Kuiper Holland guarantees the soundness of the new goods it has delivered for a period of 12 months after delivery. However, defects caused by normal wear and tear or lack of maintenance are expressly excluded from the warranty.

14.2 No warranty is provided for defects resulting from:

- a. normal wear and tear;
- b. improper and/or careless use;
- c. use not in accordance with the intended purpose;
- d. absent or incorrect maintenance;
- e. installation and/or assembly and/or repair by the Client or by third parties engaged by the Client;
- f. the use of an incorrect type of lacquer or paint, causing the result expected by the Client to fall short.

14.3 Defects that become apparent within the warranty period and are reported to Kuiper Holland in writing within 14 (fourteen) days after their discovery, will be remedied by Kuiper Holland, insofar as possible, by addition or – at its discretion – repair or replacement.

14.4 The following provisions apply to the remedying of shortcomings and defects:

- a. Kuiper Holland will make efforts to carry out the remedy as soon as reasonably possible given the circumstances. The Client shall provide all cooperation required for this purpose.
- b. The remedy will take place, as much as possible, at a location designated by Kuiper Holland. The goods shall be transported to and from that location at the expense and risk of the Client.
- c. In the event the remedy is carried out outside the Netherlands, all travel and accommodation expenses (including time spent traveling and staying) of those performing the investigation and the remedy shall be borne by the Client.
- d. Goods or parts that become available upon replacement automatically become the property of Kuiper Holland.
- e. If shortcomings or defects relate to goods acquired by Kuiper Holland from third parties, or to work performed by third parties on behalf of Kuiper Holland, then the remedy will only be performed free of charge insofar as the third party bears the costs thereof.
- f. The Client's right against Kuiper Holland to have shortcomings and defects remedied lapses if the Client performs or has performed the remedy without the prior approval of Kuiper Holland.
- g. The occurrence of shortcomings or defects does not constitute grounds for suspension of the Client's payment obligations towards Kuiper Holland. If the

Client does not fulfill its payment obligations even after written notice, this results in the lapse of its right to remediation of shortcomings and defects.

15. The Client may only invoke the warranty after fulfilling all of its obligations towards Kuiper Holland.

16. Force Majeure

16.1 Kuiper Holland has the right to suspend the performance of its obligations if, due to circumstances that could not have been foreseen at the time the agreement was concluded and that are beyond its control, it is temporarily prevented from fulfilling its obligations.

16.2 For Kuiper Holland, force majeure includes circumstances of a factual, legal, or other nature which — whether or not foreseeable — prevent the (timely) performance of the agreement, or render it excessively burdensome, without fault on its part. These include, among others: strikes, business occupations, pandemics, production interruptions, production stoppages, disruptions in the supply of energy and water, fire damage, import, export and production bans and other government measures, transport obstructions, shortcomings of Kuiper Holland's suppliers and auxiliary persons, weather conditions affecting work to be carried out by Kuiper Holland, loss or theft of tools, the loss of materials and/or components to be processed — all insofar as Kuiper Holland cannot be blamed for such circumstances.

16.3 If a situation of force majeure occurs on the part of Kuiper Holland, it shall notify the Client thereof with due promptness. If performance has become permanently impossible, or if the temporary impossibility has lasted for more than six months, Kuiper Holland is entitled to terminate the agreement with respect to the part of the obligations that has not yet been fulfilled. In such case, neither party is entitled to compensation for any damage suffered or to be suffered as a result of the termination.

17. Intellectual Property

17.1 Kuiper Holland will deliver goods that do not infringe on third-party intellectual property rights. If the Client is approached by a third party in connection with a conflict in the Netherlands with an intellectual property right, the Client shall promptly notify Kuiper Holland and allow Kuiper Holland to handle and settle the third-party claim. If Kuiper Holland considers it plausible that a conflict exists in the Netherlands with an industrial or intellectual property right, Kuiper Holland is entitled — at its discretion and in consultation with the Client — to eliminate the infringement by modifying or replacing the relevant item, or by acquiring a license, or to take back the item concerned against a refund of the purchase price received for it. The costs of handling and settling the third-party claim shall be borne by Kuiper Holland,

which shall not be liable for any further compensation of damages.

- 17.2 If Kuiper Holland, in the performance of an agreement with the Client, uses drawings, models, instructions, etc. obtained from or on behalf of the Client, and a third party brings a claim against Kuiper Holland for infringement of an industrial or intellectual property right in connection with the use of such drawings, models, instructions, etc., Kuiper Holland shall promptly notify the Client thereof. Kuiper Holland shall leave the handling and settlement of the third-party claim to the Client, who shall bear all costs related to the third-party claim, both for itself and for Kuiper Holland. Kuiper Holland is entitled either to suspend the performance of the relevant agreement pending the outcome of the Client's actions against the third party, or to terminate the relevant agreement with immediate effect without being liable for compensation.
- 17.3 Unless otherwise agreed in writing, Kuiper Holland retains the copyrights as well as all other intellectual property rights to the designs, sketches, images, drawings, models, software, quotations, etc. created by it. These items remain the property of Kuiper Holland and may not, without its express permission — subject to a penalty of EUR 50,000 for each violation, payable to Kuiper Holland — be copied, shown to third parties, or otherwise used, regardless of whether the Client has been charged costs for them. The Client is obliged to return these items upon first request of Kuiper Holland, subject to a penalty of EUR 5,000 per day, payable to Kuiper Holland.

18. Liability for Damage

- 18.1 Kuiper Holland is not liable for any damage suffered by the Client, unless such damage is the direct and exclusive result of a failure attributable to Kuiper Holland. Kuiper Holland's liability is at all times limited to a maximum amount equal to the invoice value of the goods supplied by Kuiper Holland to which the liability relates. Only damage that is covered by Kuiper Holland's insurance, or that Kuiper Holland should reasonably have been insured against, is eligible for compensation. Kuiper Holland's liability is at all times limited to the amount that Kuiper Holland is able to recover from its insurer.
- 18.2 In any case, the following shall never be eligible for compensation:
- a. consequential and/or business damage, including production downtime and loss of profit;
 - b. damage caused to property (including movable and immovable property) or persons during the performance of installation, assembly and/or repair work;
 - c. damage or injury caused to persons and/or property due to the Client and/or its employees operating the item, working on it, or otherwise handling it during the

installation, assembly and/or repair period outside the supervision of Kuiper Holland;

- d. damage arising because the usage instructions/instructions regarding the goods supplied by Kuiper Holland were not followed;
 - e. damage arising because the item supplied by Kuiper Holland was used for a purpose other than its intended purpose or for a purpose for which it is not suitable;
 - f. damage occurring during unloading of the goods if Kuiper Holland, at the request of the Client, arranged for the goods to be transported to an address belonging to or specified by the Client;
 - g. damage occurring or caused by actions involving the item, or (installation and/or assembly) work on the item, carried out by the Client or by third parties engaged by or on behalf of the Client.
- 18.3 Kuiper Holland is not liable for damage that becomes apparent more than twelve (12) months after the event that caused the damage.
- 18.4 From the moment the goods are delivered to the Client, the Client shall indemnify Kuiper Holland against all third-party claims, including compensation for damages, regardless of whether the damage was caused by composition and/or manufacturing defects or by any other cause.
- 18.5 If the Client holds Kuiper Holland liable for compensation of damage based on a claim taken over from a third party, in the causation of which Kuiper Holland is in any way directly or indirectly involved, Kuiper Holland may also invoke the above provisions against the Client. The above provisions also apply for the benefit of the persons who are in any way involved in fulfilling Kuiper Holland's obligations towards the Client.
- 18.6 Kuiper Holland's liability is limited to the invoice value of the goods and services supplied by Kuiper Holland.

19. Suspension and Termination of the Agreement

- 19.1 In the event that performance of the agreement is prevented due to force majeure, Kuiper Holland is entitled, without judicial intervention, either to suspend the performance of the agreement for a maximum of six months, or to terminate the agreement in whole or in part, without being liable for any compensation. Force majeure also includes: sanctions and export/import restrictions, (sudden) changes in applicable laws and regulations including documentation and due-diligence requirements (such as EUDR), supply issues with third parties over whom Kuiper Holland has no decisive influence, and any associated government action. Furthermore, during the suspension Kuiper Holland is entitled, and at its end obliged, to choose either to perform or to partially or fully terminate the agreement. In both the case of suspension and termination, Kuiper Holland is entitled to demand immediate payment for what has already

been performed by Kuiper Holland in execution of the agreement.

- 19.2 If the Client fails to comply, properly or timely, with any obligation arising for it from the agreement concluded with Kuiper Holland or from a related agreement, or if there is good reason to fear that the Client is or will be unable to fulfil its contractual obligations towards Kuiper Holland, as well as in the event of bankruptcy, suspension of payments, shutdown, liquidation or partial transfer — whether or not as security — of the Client's business, including the transfer of a substantial part of its receivables, Kuiper Holland is entitled, without notice of default and without judicial intervention, either to suspend the performance of any such agreement(s) for a maximum of six months, or to terminate such agreement(s) in whole or in part, without being liable for any compensation or warranty and without prejudice to any further rights accruing to Kuiper Holland. During the suspension Kuiper Holland is entitled, and at its end obliged, to choose either to perform or to partially or fully terminate the suspended agreement(s).
- 19.3 In the event of suspension and/or termination pursuant to Article 19.2, the agreed price becomes immediately due and payable, minus the instalments already paid and the costs saved by Kuiper Holland as a result of the suspension or termination.
- 19.4 Kuiper Holland is not entitled to demand termination of the agreement with retroactive effect.

20. Applicable Law and Competent Court

- 20.1 Only Dutch law applies to the legal relationship(s) between Kuiper Holland and the Client. The Vienna Sales Convention of 11 April 1980 (CISG) is expressly not applicable.
- 20.2 Unless mandatory statutory provisions provide otherwise and unless the Parties subsequently agree to arbitration, the court in the district where Kuiper Holland has its registered office shall have exclusive jurisdiction to hear disputes arising between Kuiper Holland and the Client concerning or related to their legal relationship, which cannot be settled amicably.
- 20.3 If the Parties subsequently agree to arbitration, such arbitration shall, unless otherwise agreed at that time, be governed by the rules of the Arbitration Rules of the Netherlands Arbitration Institute (2015 version), and shall be conducted in accordance with the institutional rules of that arbitration tribunal.

21. Partial Invalidity

- 21.1 If any provision of these Terms is, for any reason, wholly or partially invalid, the agreement and these Terms shall remain in full force for the remainder, while the Parties shall be deemed to have agreed, with respect to the invalid provision(s), on that which is valid and most closely reflects the intent of the invalid provision.